

**IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, OHIO
DIVISION OF DOMESTIC RELATIONS AND JUVENILE BRANCH**

LAMONT EVANS

:

Plaintiff,

:

v.

: Case No. 12JU – 9451

TALICIA TOWNSEND

: JUDGE PREISSE

Defendant.

: MAGISTRATE REEDUS

AGREED ENTRY - SHARED PARENTING DECREE

This matter came before the Court on the Motion of Lamont Evans for Modification of the Allocation of Parental Rights and Responsibilities and Shared Parenting of the minor children of the parties, Imonee Evans (date of birth October 24, 2003), Isaiah Evans (date of birth February 17, 2006) and Ivan Evans (date of birth July 3, 2007). Talicia Townsend waived service of the Complaint. The parties have reached agreement on all matters before the Court and agree that Shared Parenting is in the best interest of the children. The parties request that the Court approve the Shared Parenting Plan they have filed with the Court.

It is therefore ORDERED, ADJUDGED and DECREED as follows:

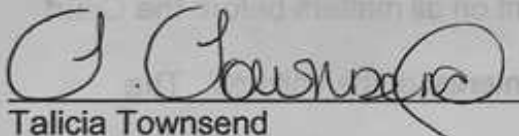
1. The Shared Parenting Plan is found to be in the minor children's best interest and is approved. Lamont Evans and Talicia

- Townsend are awarded shared parenting of their minor children, Imonee Evans, Isaiah Evans and Ivan Evans pursuant to this plan.
2. This Shared Parenting Decree is final immediately subject to modification or termination as set forth in Section 3109.04(e) of the Ohio Revised Code. Said plan is incorporated herein and made an order of the Court.
 3. The parties waive the requirement that the Shared Parenting Plan be filed 30 days in advance of the hearing.

Signature Page Attached

JUDGE PREISSE

Approved:


Talicia Townsend

PRAECIPE: TO THE CLERK OF COURTS

Pursuant to Civil Rule 58(B), you are hereby instructed to serve upon all parties not in default for failure to appear, notice of the judgment and its date of entry upon the journal.


Lamont Evans

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SHARED PARENTING PLAN

Talicia Townsend and Lamont Evans are the parents of the minor children, Imonee Evans (date of birth October 24, 2003), Isaiah Evans (date of birth February 17, 2006) and Ivan Evans (date of birth July 3, 2007). Pursuant to Ohio Revised Code Section 3109.04(D), the parties request that this Court grant them shared care, parenting and control of their minor children as provided in this Shared Parenting Plan.

I. Parents' Responsibilities.

A. **Consultation and Decision Making.** Talicia Townsend and Lamont Evans shall consult with each other about all major educational, medical, extracurricular activity, and other issues concerning the children's health and well-being. Talicia Townsend and Lamont Evans shall use their best efforts to make major decisions regarding the children jointly.

B. **Education.** Both parents shall have access to all school information concerning the children that is available to parents.

Both parents shall be listed as contact persons on all school

records. Both parents may participate in school events including parent teacher conferences.

C. **Medical.** Lamont Evans and Talicia Townsend are both authorized to obtain and consent to medical treatment for Imonee Evans, Isaiah Evans and Ivan Evans. Lamont Evans and Talicia Townsend shall promptly notify each other if a child is seriously ill or injured or is treated in an emergency room or hospital.

D. **Extracurricular Activities.** The parent receiving notices and schedules of extracurricular activities, including the name of the activity leader (including address and telephone number if reasonably available), shall provide this information to the other parent.

E. **Address and Telephone Numbers.** Lamont Evans and Talicia Townsend shall keep each other informed of his or her address and telephone numbers and all changes in addresses or telephone numbers..

II. Physical Living Arrangements.

A. **Legal Custodians.** Lamont Evans and Talicia Townsend are both residential parents and legal custodians of Imonee Evans, Isaiah Evans and Ivan Evans.

B. **Residential Parent for School Purposes.** Talicia Townsend is designated the residential parent of Imonee Evans, Isaiah Evans and Ivan Evans for school purposes. The children shall be in the

care of Talicia Townsend except as provided in this Shared Parenting Plan or as the parents agree.

C. **Parenting Time Schedule.** Talicia Townsend and Lamont Evans shall have parenting time with the children as follows:

1. **Alternate Weeks.** Lamont Evans and Talicia Townsend shall alternate weeks with the children from Monday after school or at 12:00 noon if there is no school until the following Monday after school or at 12:00 noon if there is no school. Lamont Evans has parenting time the week beginning on January 11, 2016.

2. **Alternate or Additional Parenting Time.** Alternate or additional parenting time may be arranged by agreement of the parents.

D. **Holidays.** Lamont Evans and Talicia Townsend shall have holiday parenting time with the children as follows:

1 **Thanksgiving.** The children shall be with Talicia Townsend in odd numbered years and with Lamont Evans in even numbered years from Thanksgiving Day at 12:00 noon until the Friday after Thanksgiving at 12:00 noon.

2 **Christmas Eve.** The children shall be with Lamont Evans in odd numbered years and with Talicia Townsend in even numbered years from Christmas Eve at 12:00 noon until Christmas Day at 2:00 p.m.

1 **Christmas.** The children shall be with Talicia Townsend in odd

numbered years and with Lamont Evans beginning in even
numbered years from Christmas Day at 2:00 p.m. until
December 26th at 2:00 p.m.

E. **Vacation.** Each parent may take one week of uninterrupted
vacation time with the children each year during his or her
parenting time. The parent taking the vacation shall provide the
other parent with at least 14 days advance notice of the vacation
and a general itinerary of the trip including the location and a
contact telephone number.

F. **Transportation.** Lamont Evans and Talicia Townsend shall each
provide transportation at the beginning of his or her alternate
weekday parenting times. Parenting time exchanges for holidays
shall take place at a mutually agreed upon location approximately
half way between the parents' residences.

G. **Telephone.** Lamont Evans and Talicia Townsend may call the
children at all reasonable times when they are with the other
parent. Both parents shall permit the children to call the other
parent at all reasonable times.

III. **Child Support.** Child support shall be determined by the Court in a
separate Court Order.

IV. **Medical Insurance and Medical Expenses.** Talicia Townsend shall
provide private medical insurance for Imonee Evans, Isaiah Evans and Ivan Evans.
Talicia Townsend shall pay 50% and Lamont Evans shall pay 50% of the cost of all

medical and other healthcare expenses for the children that are not covered by insurance.

V. **Dependency Deduction**. The Dependency Deduction shall be addressed by the Court in a separate Court Order.

VI. **Notices**

A. **RELOCATION NOTICE**. Pursuant to Ohio Revised Code Section 3109.051 (G), the parties hereto are hereby notified as follows:

IF THE RESIDENTIAL PARENT INTENDS TO MOVE TO A RESIDENCE OTHER THAN THE RESIDENCE SPECIFIED IN THE PARENTING TIME ORDER OR DECREE OF THE COURT, THE RESIDENTIAL PARENT SHALL FILE A NOTICE OF INTENT TO RELOCATE WITH THIS COURT, ADDRESSED TO THE ATTENTION OF THE RELOCATION OFFICER. UNLESS OTHERWISE ORDERED PURSUANT TO O.R.C. SECTIONS 3109.051 (G)(2), (3), AND (4), A COPY OF SUCH NOTICE SHALL BE MAILED BY THE COURT TO THE PARENT WHO IS NOT THE RESIDENTIAL PARENT. UPON RECEIPT OF THE NOTICE, THE COURT, ON ITS OWN MOTION OR THE MOTION OF EITHER PARTY, MAY SCHEDULE A HEARING WITH NOTICE TO BOTH PARTIES TO DETERMINE WHETHER IT IS IN THE BEST INTEREST OF THE CHILD TO REVISE THE PARENTING TIME SCHEDULE.

B. **RECORDS ACCESS NOTICE**. Pursuant to Ohio Revised Code Section 3109.051(H) and 3319.321 (B)(5)(a), the parties hereto are hereby notified as follows:

EXCEPTING AS SPECIFICALLY MODIFIED OR OTHERWISE LIMITED BY COURT ORDER, AND SUBJECT TO O.R.C. SECTIONS 3125.16 AND 3319.321(F), THE PARENT WHO IS NOT THE RESIDENTIAL PARENT, IS ENTITLED TO ACCESS TO ANY RECORD THAT IS RELATED TO THE CHILD, UNDER THE SAME TERMS AND CONDITIONS AS THE RESIDENTIAL PARENT, AND TO WHICH SAID RESIDENTIAL PARENT IS LEGALLY PROVIDED ACCESS. ANY KEEPER OF A RECORD WHO KNOWINGLY FAILS TO COMPLY WITH THIS ORDER, IS IN CONTEMPT OF COURT.

C. DAY CARE CENTER ACCESS NOTICE. Pursuant to Ohio

Revised Code Sections 3109.051 (I), the parties hereto are hereby notified as follows:

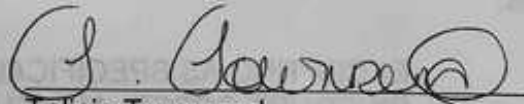
EXCEPTING AS SPECIFICALLY MODIFIED OR OTHERWISE LIMITED BY COURT ORDER, AND IN ACCORDANCE WITH O.R.C. SECTION 5104.011, THE PARENT WHO IS NOT THE RESIDENTIAL PARENT, IS ENTITLED TO ACCESS TO ANY DAY CARE CENTER THAT IS OR WILL BE ATTENDED BY THE CHILD WITH WHOM PARENTING TIME IS GRANTED, TO THE SAME EXTENT THAT THE RESIDENTIAL PARENT, IS GRANTED ACCESS TO THE CENTER.

D. SCHOOL ACTIVITIES NOTICE. Pursuant to Ohio Revised Code

Section 3109.051(J), the parties hereto are hereby notified as follows:

EXCEPTING AS SPECIFICALLY MODIFIED OR OTHERWISE LIMITED BY COURT ORDER, AND SUBJECT TO O.R.C. SECTION 3319.321(F), THE PARENT WHO IS NOT THE RESIDENTIAL PARENT, IS ENTITLED TO ACCESS, UNDER THE SAME TERMS AND CONDITIONS AS THE RESIDENTIAL PARENT, TO ANY STUDENT ACTIVITY THAT IS RELATED TO THE CHILD AND TO WHICH THE RESIDENTIAL PARENT OF THE CHILD LEGALLY IS PROVIDED ACCESS. ANY SCHOOL EMPLOYEE OR OFFICIAL WHO KNOWINGLY FAILS TO COMPLY WITH THIS ORDER IS IN CONTEMPT OF COURT.

Talicia Townsend and Lamont Evans hereby acknowledge their agreement with the provisions of the Shared Parenting Plan by voluntarily signing this Shared Parenting Plan.


Talicia Townsend


Lamont Evans